

26STCV24837 26STCV24837

County: los-angeles

Division: Civil Law and Motion

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Case Number: 26STCV24837 Hearing Date: September 3, 2026 Dept: 836

ORDER TO SHOW

CAUSE

RE: PRELIMINARY INJUNCTION

Date: 9/3/26

(1:30 PM)

Case: Los Angeles County Metropolitan

Transit Authority v. Train Foods, Inc. (26STCV24837)

TENTATIVE RULING:

Plaintiff Los Angeles County Metropolitan Transit

Authority's request for a preliminary injunction is GRANTED.

I.

FACTUAL AND PROCEDURAL BACKGROUND

Plaintiff Los Angeles Metropolitan Transportation Authority

("Plaintiff") owns and operates Los Angeles Union Station ("Union Station").

Defendant Train Foods, Inc. dba Roscoe's House of Chicken and Waffles

("Defendant") rented restaurant space ("Premises") within Union Station

pursuant to a commercial lease ("Lease"). Plaintiff alleges Defendant has

negligently mishandled construction and renovation of the Premises in a manner

that violates numerous statutes and regulations and continues to pose

"extremely dangerous risks to the health and safety of [Station] patrons and

visitors, including risks of fire, explosion, station deactivation, and

flooding, as well as requiring evacuation protocols.” (Compl. ¶ 20.)

Plaintiff seeks a preliminary order in this action enjoining Defendant from (1) engaging in any actions inconsistent with, or in violation of, a construction Stop Notice Plaintiff has issued to Defendant through its property manager and (2) engaging in any “construction or like activities and/or entry onto the Premises for any construction-related purpose,” except according to certain conditions.

Plaintiff and Defendant executed their Lease around July 30, 2024. The Lease commenced alternatively on (1) the date when Defendant opened its planned restaurant to the public or (2) 180 days after execution; Defendant did not open its restaurant within 180 days of execution, so the Lease commenced on January 26, 2025.

At some point between July 2024 and July 2025, Plaintiff delegated property management for the Premises to third party Morlin Asset Management LLC (“Morlin”). On July 20, 2025, Defendant and Morlin executed a “Tenant Construction Requirements” agreement (“TCRA”). The TCRA, among other things, granted Morlin the right to issue a Stop Notice if it found Defendant’s construction adversely impacted Union Station’s operations or safety.

In its complaint and in its instant application for relief, Plaintiff contends Defendant undertook construction negligently in various respects, including:

- From the outset, Defendant’s construction plans were “woefully minimalistic and effectively incomplete” (Youngblood Decl. ¶ 4);
- The plans appear to call for floor penetrations, but Defendant never produced x-ray scanning to establish the penetrations would not affect the Station’s structural integrity, as is ordinary practice (Youngblood Decl. ¶ 5);
- Incompetent sink removal caused flooding that required Morlin engineering support staff to respond (Youngblood Decl. ¶ 6);
- Defendant’s plumber, electrician, and

general contractor, together and without proper notice, incompetently attempted to reactivate kitchen exhaust hoods in a manner that caused the entire Station Fire Life Safety system to shut down all common area ventilation, then hastily abandoned the Premises (Youngblood Decl. ¶ 7); and

- Defendant's contractor team removed SoCalGas red tags indicating leakage, or risk of leakage, of gas into the Premises and Station (Youngblood Decl. ¶¶ 9-13, 17-18 & Ex. B).

On July 1, 2026, Plaintiff filed an unlawful detainer complaint against Defendant in the Los Angeles County Superior Court, case number 26STUD06675, which is pending and assigned to Department 631 (Hon. Janet E. Hong). The Court on its own motion takes judicial notice of the entire case file in Case No. 26STUD06675 ("UD Action"), but does not accept as the contents of any filing for its truth.

As alleged in Plaintiff's unlawful detainer complaint, Plaintiff served Defendant with a lengthy 30-day Demand to Cure or Quit on May 20, 2026. (UD Action Compl. Ex. B.) Plaintiff alleges in the UD Action that the breaches were not timely cured. Plaintiff's motion for summary judgment in the UD Action is set for hearing on September 22, 2026.

On August 5, 2026, Plaintiff filed its complaint in this case. On August 10, 2026, Plaintiff applied ex parte for a temporary restraining order on the same terms as the preliminary injunction now at issue. The applications for TRO and injunction are supported by approximately 14 declarations from Plaintiff's employees or agents. The Court granted the TRO on August 12, 2026 over Plaintiff's opposition and issued the OSC Re: Preliminary Injunction set for hearing on this date.

On August 24, 2026, Defendant filed an opposition to Plaintiff's requested injunction. The opposition is supported by two declarations, totaling five pages, and two pages of exhibits showing SoCalGas serviced fryers at the Premises on August 10, 2026 and observed "Gas is on. No gas leaks detected." on the service report. Defendant advances no further evidentiary support. On August 28, 2026, Plaintiff filed a Reply.

II.

ANALYSIS

“[T]he question whether a preliminary injunction should be granted involves two interrelated factors: (1) the likelihood that the plaintiff will prevail on the merits, and (2) the relative balance of harms that is likely to result from the granting or denial of interim injunctive relief.” (White v. Davis (2003) 30 Cal. 4th 528, 554.)

Plaintiff meets its burden to show a probability of prevailing on the merits of its claims of negligence and nuisance in this action. The complaint and the declarations in support of Plaintiff's application show a host of violations – not just mismanagement of gas lines – that amount to and, if they continue, would amount to negligence and nuisance. In opposition, Defendant contends the evidence all relates to breaches that occurred in the past; this is immaterial to Plaintiff's probability of prevailing. Plaintiff's claims are based, in part, on breaches that occurred in the past. They do not require Plaintiff to show the breaches are ongoing. In any event, based on Defendant's past conduct, Plaintiff also demonstrates a sufficient probability that incidents of negligence and nuisance are likely to occur if construction were to continue.

The balance of harms likewise tilts heavily in Plaintiff's favor. Plaintiff articulates serious harm to the Station and the public if Defendant's negligence were to recur. The incidents of past harms and risks of harm is relevant to show the serious harms that could result from future breaches of Defendant's duties. In opposition, Defendant demonstrates no meaningful harm it would suffer from the proposed injunction. Even if the Court were to assume Defendant would suffer some degree of economic damage by virtue of the being enjoined from further construction activities, the danger of physical damage to the Station or Premises and of injury to the public vastly outweighs any such hypothetical economic damage to Defendant.

III. CONCLUSION

For the foregoing reasons, Plaintiff's request for a preliminary injunction is GRANTED. The Court hereby issues a preliminary injunction as contemplated by the Order to Show Cause Re: Preliminary Injunction, filed August 12, 2026.

Pursuant to CCP 529, the Court shall require Plaintiff to post an undertaking in the amount of estimated damages Defendant may suffer by reason of the injunction imposed, if it were later determined the injunction had been issued in error. The Court will

hear from the parties as to the appropriate amount of such required undertaking.

Within two court days, Plaintiff shall submit a Proposed Order for Preliminary Injunction consistent herewith.